

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT		1. CONTRACT ID CODE		PAGE 1 OF 61 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0002		3. EFFECTIVE DATE 01/21/2026		4. REQUISITION/PURCHASE REQ. NUMBER	
5. PROJECT NUMBER (If applicable)		6. ISSUED BY FEDLINK Contracts Library of Congress 101 Independence Ave SE LA 215 Washington, DC 20540-9411		7. ADMINISTERED BY (If other than Item 6)	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, country, state and ZIP Code)		(X)		9A. AMENDMENT OF SOLICITATION NUMBER LCFDL26R0012	
		X		9B. DATED (SEE ITEM 11) 01/13/2026	
				10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				10B. DATED (SEE ITEM 11)	
CODE		FACILITY CODE			

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended,

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment your desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

The purpose of Amendment 0002 is to:

- Provide responses to all questions received via the LCFDL26R0012 Questions and Answers 1 attachment;
- Update Attachment A - Lot 1 Price Schedule to remove ODC language; and
- Update Section L.

The response date/time have not been extended.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) Catherine Campbell Contracting Officer	
15B. CONTRACTOR/OFFEROR _____ (Signature of person authorized to sign)	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA By _____ (Signature of Contracting Officer)	16C. DATE SIGNED

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Section B - Supplies or Services and Prices/Costs

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0001	5-Year Ordering Period for FEDLINK Library Support Services Other PSC:	Original: 1.000000 Change: 0.000000 Current: 1.000000	LOT		
Period of Performance: 05/01/2026 - 04/30/2031					
Description: 5-Year Ordering Period for FEDLINK Library Support Services in accordance with Section C - Statement of Work.					
Pricing Options: Indicator: Base					

Schedule of Supplies/Services Schedule of Supplies/Services**B.1. Contract Type**

This solicitation will result in multiple Indefinite Delivery Indefinite Quantity (IDIQ) contracts. The Indefinite Delivery/Indefinite Quantity (IDIQ) contracts will have a five-year period of performance. FEDLINK will issue Firm-Fixed Price (FFP) task orders and/or labor hour task orders against these IDIQs.

Individual orders may be placed on a firm fixed unit price basis, the cumulative value of which will not exceed the maximum defined in the contract (B.3.) In accordance with 2 U.S.C. § 182c (f)(1)(A), federal entities in the executive branch (including Department of Defense agencies), the legislative branch, and the judicial branch, independent agencies, and federal agency contractors that are authorized to use federal sources of supply under FAR subpart 51.1 may be authorized to place orders under these contracts in accordance with the terms and procedures herein.

Orders placed against the IDIQ contract will be in accordance with the Federal Acquisition Regulation (FAR). Ordering offices do not need to synopsise the requirement. The terms and conditions of the IDIQ contract will be incorporated in any resulting order. In accordance with FAR 16.505, individual orders shall clearly describe all services to be performed or supplies to be delivered so the full cost or price for the performance of the work can be established when the order is placed. Orders shall be within the scope, issued within the period of performance, and be within the maximum value of the contract. Only the Library of Congress Contracting Officers may place orders against this contract.

The Government reserves the right to reopen competition to new potential contractors annually.

The Library of Congress / FEDLINK may transfer some or all of the contract administration functions to the FEDLINK customer agency at any time during the life of the contract. The contract administration functions include, but are not limited to: the exercise of optional contract line item numbers (CLINs), the exercise of the option to extend services, the exercise of the option to extend the term of the contract, and any other contract modifications. The Library of Congress will transfer any and all contract administration functions to the FEDLINK customer agency by written modification. Upon transfer, the FEDLINK customer agency will assume contract administration functions in accordance with the terms of the contract.

B.2. PRICING SCHEDULE

Price schedules are included in the attachments. The Government approved quoted prices will be incorporated into the resulting IDIQs and must be consistent with pricing for any executed Task Orders under the resulting IDIQ.

All products and pricing offered must be associated with the appropriate Contract Line Item Number (CLIN). Offerors shall provide fixed hourly rates for all labor categories for each year during the five-year ordering period. For those offerors that cannot provide firm-fixed pricing beyond the first year, offerors shall indicate a yearly cap on annual price increases and explain how the price cap was determined.

If you are proposing on Lot 1, see and complete Attachment A - Lot 1 Pricing Schedule. If you are proposing on Lot 2, see and complete Attachment B - Lot 2 Pricing Schedule.

B.2.1. Pricing Pages. The pricing pages shall reflect the contractor's pricing schedule based on industry standard. Contractor shall submit pricing pages in Microsoft Excel spreadsheet format. Pricing pages shall reflect year, CLIN, description, commercial rate, FEDLINK rate, and FEDLINK discount. All dollar amounts shall be limited to two decimal places, with no rounding used. Contractor shall use the FEDLINK Pricing Schedule Template, an Excel spreadsheet, for price proposal submission (see Section J. Attachments).

Orders placed under the resultant IDIQ contracts shall be subject to the Service Contract Act. In accordance with FAR 52.222-41, contractors must pay no less than the minimum hourly wages and fringe benefits as stated in the wage determination incorporated into the contract. For orders performed outside of the Washington, DC metropolitan area, the applicable wage determination will be incorporated at the task order level.

B.3. Minimum/Maximum:

The guaranteed minimum contract amount for each IDIQ contract is \$2,500.00. The maximum cumulative amount that the Government may order and the Contractor shall be required to supply is \$100,000,000.00 for each contract awarded under this solicitation.

B.4 Open Season Under Multiple Award IDIQ Contracts

(a) Consistent with FAR 16.504(c)(1)(ii)(A), the Library reserves the right, at all times during the ordering period(s) of the contract, to periodically initiate an open season to add new contractors to the contract or dismiss IDIQ contract awardees that are not effectively participating in the fair-opportunity solicitation and ordering process. IDIQ awardees that do not participate in the fair opportunity solicitation process for more than 12 months may be dismissed pursuant to the convenience termination clause of this contract at the discretion of the contracting officer. Offerors that submitted proposals but did not earn new task order awards for more than 24 months may also be dismissed pursuant to the convenience termination clause of this contract at the discretion of the contracting officer.

(b) If the Library determines that it would be in the Government's best interest to open a new solicitation to add new contractors to the IDIQ Contract, the Library contracting officer may do so at any time provided that:

- (i) The solicitation is issued under then-applicable federal procurement law and regulations applicable to the Library;
- (ii) IDIQ contract awardees are not permitted to hold more than one IDIQ contract at any time, however awardees may submit proposals to have additional performance areas not previously awarded added to their current IDIQ contract;
- (iii) The evaluation factors for award under any open season solicitation are the same or substantially the same as in the original solicitation;
- (iv) The terms and conditions of any resulting awards from a new solicitation are materially identical to the existing version of the IDIQ contract;
- (v) The term for any such new awards from a solicitation is co-terminus with the existing term for all other IDIQ contractors, including any option period(s) (if applicable);
- (vi) If awarded a new IDIQ contract, any new awardee is eligible to submit a proposal in response to any fair-opportunity solicitation that is issued and receive task order awards with the same rights and obligations as any other IDIQ contractor; and
- (vii) The award of any new IDIQ Contract(s) does not increase the overall ceiling of the IDIQ contract.

(c) Initiation of any open season solicitation does not obligate the Library to perform any other open season, on-ramping, or off-ramping procedures.

(d) Open season solicitations may be limited to only a single performance area or less than the entire set of performance areas.

Section C - Descriptions/Specifications/Statement of Work

Statement of Work Statement of Work

C.1. BACKGROUND

The title of this procurement is "FEDLINK Library Support Services."

The Library of Congress Federal Library and Information Network (FEDLINK) revolving fund statute, codified at 2

U.S.C. § 182c (f)(1), authorizes the FEDLINK program to provide the following services on behalf of participating federal libraries, federal information centers, other entities of the Federal Government, and the District of Columbia:

- The procurement of commercial information services, publications in any format, and library support services.
- Related accounting services.
- Related education, information, and support services.

With this authorization, FEDLINK establishes centralized IDIQ contracts to provide assisted acquisition services to federal offices in all branches of government (executive, including Department of Defense; legislative; and judicial), independent agencies, and contractors authorized to use federal sources of supply under FAR part 51. The program also provides accounting services: receiving and processing invoices for customers who transfer funds to the program and making centralized payments to contractors.

C.2 SCOPE

The contractor shall provide library support services to enable agencies to accomplish core functions of library and information centers, including collection management, public services, technical services, data services, training and education, outreach, and library management.

Contractors may offer services under any or all Lots or parts of Lots.

C.2.1 Lot 1 – On-site Library Support Services

Staffing for work performed on-site at a federal library or other designated facilities. Requirements are described in section **C.3.** of this solicitation.

C.2.2 Lot 2 – Off-Site Technical Services

Technical services performed off-site, away from the federal library or facility. Requirements are described in section **C.4.** of this solicitation.

C.3. LOT 1 – On-site Library Support Services

C.3.1. Scope. The Contractor shall provide on-site staffing as well as project management to accomplish the goals of federal libraries and information centers. All staff will have appropriate qualifications as described in section **C.3.3. Labor Categories and Qualifications for Library Support Services.** Work may be performed at one or more locations based on the needs of the specific project.

C.3.2. Task Areas. Task area headings are for the purpose of categorizing tasks in this IDIQ and may differ on individual task orders. There is overlap between task areas. Specific tasks to be performed will be defined in individual task orders. The contractor shall provide on-site library support services in the following task areas:

a. Management

Includes the management of library and information center staff or project areas such as digitization. Tasks may include the following:

- Departmental or Program Management Library Management
- Project Management

b. Library Systems

Includes the management and support of integrated library systems, library management systems, library service platforms, library web sites, and other systems and software that support the library's operation. Tasks may include the following:

- Library System Management
- Library System Maintenance and Support
- Library Software Development
- Web Site Development

c. Collection Services

Includes services to manage library collections and deliver content. Tasks may include the following:

- Circulation
- Document Delivery
- Interlibrary Loan
- Electronic Resources Management
- Shelving, Filing, and/or Inventory Material Handling
- Packing and Shipping Materials

d. Data Services

Includes data management services to support research. Tasks may include the following:

- Data Management
- Data Analysis and Data Visualization
- SQL, R, Python, and Other Programming
- Digital Library Support
- Digital Preservation
- Digitization Support Services

e. Public Services

Includes services to provide reference, research, training, programs, and outreach. Tasks may include the following:

- Subject Matter Expertise
- Reference
- Research
- Virtual Reference
- Instruction and Training
- Outreach and Marketing

f. Technical Services

Includes services to provide bibliographic control, physical processing, and the acquisition of collections. Tasks may include the following:

- Cataloging and Metadata (on-site)
- Digital Asset Management
- Physical Processing
- Taxonomy
- Indexing
- Acquisitions

C.3.3. Labor Categories and Qualifications for Library Support Services

The contractor must provide resources including staff who are qualified to perform in the labor categories designated in this section. The responsibilities and qualifications cited for each category are basic and typical, and therefore not all inclusive. Additional labor categories may be added as appropriate to fulfill the contract requirements. For the purposes of this contract, personnel are classified into occupations based on their common responsibilities and qualifications.

Personnel with the same title may be classified in different categories based on their individual job duties, and individual task orders may use job titles other than those listed here.

Contractors will abide by the standard wage determinations for the labor categories that most closely match the position's responsibilities according to Service Contract Act (SCA) requirements. While these positions will often fall under the 13047 LIBRARIAN through 13063 MEDIA SPECIALIST III categorizations, specialized requirements may change the categorization.

Individuals in any non-supervisory labor category may be assigned the responsibility to serve as a team leader.

Librarian

Responsibilities:

- Provide guidance and access to information resources, both within the physical confines of the library and beyond the library through databases, telecommunications networks, and cooperative arrangements
- Perform tasks and duties of a professional nature and scope that require knowledge of library services, (for example, reference sources and methods; cataloging and classification systems; collection development, evaluation and materials selection; library automation systems; professional ethics and obligations)

Qualifications:

- Master's Degree in Library/Information Science from an institution accredited by the American Library Association, or equivalent graduate degree, e.g., LL.B. or J.D., related to the position, or 2 full years of progressively higher level graduate education
- May require knowledge of a specialized subject or field of endeavor and completion of a course of study resulting in a bachelor's degree in the specialized field

Examples of Position Titles:

- Reference Librarian, Access Services Librarian, Technical Services Librarian, Cataloging Librarian, Electronic Resource Librarian, Government Documents Librarian, Law Librarian, Medical Librarian, Library Systems Librarian, Marketing and Outreach Librarian, Digital Services Librarian, Metadata Librarian

Library Project Manager

Responsibilities:

- Supervise contractor library staff
- Plan, organize, and direct the development and execution of library programs, policies, and procedures
- Administrative activities concerned with budget and finance, personnel, plant and equipment, etc.
- Support other library tasks as needed (reference, interlibrary loan, etc.)

Qualifications:

- Master's Degree in Library/Information Science from an institution accredited by the American Library Association
- 5 years of experience as a project manager or supervisor in a library environment

Examples of Position Titles:

- Project Manager, Program Manager, Library Director, Library Administrator

Technical Information Specialist

Responsibilities:

- Direct, administer, develop, coordinate, and perform professional level work involved in processing, managing, and transmitting scientific, technical, or other specialized information. Includes data management services
- Visualize, interpret, and report data findings

Qualifications:

- Master's Degree in Library/Information Science from an institution accredited by the American Library Association, with a bachelor's degree in subject specialty, plus 1 year of experience providing technical information services
- Possesses a broad knowledge of one or more professional, scientific, or technical disciplines or fields of interest needed to understand the significance and relationship of the concepts and ideas contained in the information area and a practical knowledge of documentation or library techniques

Examples of Position Titles:

- Technical Information Specialist (Subject Specialization), Technical Information Specialist (Data Services), Technical Information Specialist (Informationist), Technical Information Specialist (Digital Services), Metadata Specialist, Taxonomist, Data Analyst

Library Technician

Responsibilities:

- Provide technical support by performing a variety of tasks providing direct services to the public and/ or indirect technical services such as materials acquisition, copy cataloging, support of automated systems, or other similar work in support of library or related information programs and operations.
- Support the work of librarians or information specialists

Qualifications:

- Practical knowledge of library techniques, methods, and procedures
- Associate's degree from a recognized college or technical institute with 16 credits in library science or computer science, or 1 year of experience in libraries
- Basic knowledge of and some experience with word processing, electronic mail, spreadsheets, and other office automation products

Examples of Position Titles:

- Library Technician, Library Assistant

Library Clerk

Responsibilities:

- Perform simple clerical tasks under the supervision of the Librarian or Library Technician
- Compile records, and sort, shelve, issue, and receive library materials such as books, electronic media, pictures, cards, slides and microfilm.
- Locate library materials for loan and replace material in shelving area, stacks, or files according to identification number and title.
- Register patrons to permit them to borrow books, periodicals, and other library materials.

Qualifications:

- Ability to work with some direct supervision on clearly defined tasks that may be of medium complexity
- High school diploma or equivalent

Examples of Position Titles:

- Library Clerk, Shipping/Receiving Clerk, Inventory Clerk, Materials Handling Clerk

Training Specialist

Responsibilities:

- Produce and offer formalized ongoing training on specific topics, for example, data literacy, analysis, and visualization
- Deliver in-person and online training

Qualifications:

- Bachelor's Degree in Information Technology/Information Systems/Knowledge Management/ Library Science or equivalent degree
- Experience with current social media tools and collaborative technologies
- Experience conducting training for collaborative tools and developing training content

Examples of Position Titles:

- Curriculum Specialist, Training Specialist, Curriculum Developer, Outreach Librarian

Library Systems Manager

Responsibilities:

- Installation of hardware, software, systems upgrades, network accounts, network security, and web page design, interface and updates, planning and implementing long-range automation plan, period reports, and local system design documentation
- Coordinate changes to databases and other digital library systems, including transition between new systems
- Integrate new systems with existing library software and refine system performance and functionality

Qualifications:

- Master's Degree in Library/Information Science from an institution accredited by the American Library Association or equivalent degree
- BA/BS in an information or computer science related field or 2 years' experience in web development, programming, or other related technologies
- Experience with one or more common programming languages

Examples of Position Titles:

- Library Systems Manager, Library Systems Administrator, Integrated Library Systems Administrator

Archivist

Responsibilities:

- Appraise, edit, and direct safekeeping of permanent records and historically valuable documents
- Participate in research activities based on archival materials
- Restore, maintain, or prepare objects in collections for storage, research, or exhibit

Qualifications:

- Certification from the Academy of Certified Archivists or Master's Degree in Library/Information Science from an institution accredited by the American Library Association or completion of a certification program offered by an institution following the guidelines of the Society of American Archivists preferred; Degree in related field
- Familiarity with preservation standards for different material types
- 2 years' experience in a field related to archives or the particular subject matter of the archive

Examples of Position Titles:

- Archivist, Film Archivist, Historical Records Administrator

Archives Technician

Responsibilities:

- Review records that have a preliminary inventory and alignment with the agency's retention schedule
- Identify and document records that are eligible/not eligible for destruction and prepare them for transfer to records center or archives

Qualifications:

- Knowledge of records management policies and practices, including records classification and retention schedules
- 1 year experience with document and records management or archives
- BA/BS from an accredited institution

Examples of Position Titles:

- Archives Technician, Archives Specialist, Records Specialist, Records Technician

Cataloger

Responsibilities:

- Perform original and copy cataloging of library materials in all formats

- Implement authority control measures to maintain consistency in names, subject headings, and other controlled vocabularies used in the catalog.
- Collaborate with colleagues on improving cataloging processes and procedures

Qualifications:

- Master's Degree in Library/Information Science from an institution accredited by the American Library Association or equivalent degree
- Knowledge of cataloging standards, including but not limited to RDA, Library of Congress Subject Headings, Library of Congress Classification and Dewey Decimal Classification, and MARC 21

Examples of Position Titles:

- Cataloging Librarian, Copy Cataloger, Metadata Librarian

C.4. LOT 2 – Off-Site Technical Services

C.4.1. Scope

The contractor shall provide the off-site technical services described in this section.

C.4.2. Cataloging Services. The contractor shall provide cataloging services for library materials. Cataloging entails creating and/or editing bibliographic records according to standard rules and guidelines, to include a description, subject analysis, and classification of an item. Cataloging also may include encoding records in electronic form according to standard guidelines and entering records into local and cooperative databases.

At a minimum, the contractor shall have the capability to provide records using the following rules, guidelines, and encoding format:

- **Description:** RDA: Resource Description and Access
- **Subject Analysis:** Library of Congress Subject Headings
- **Classification:** Library of Congress Classification and Dewey Decimal Classification
- **Encoding protocol:** MARC 21

Individual orders may require other cataloging schemas, rules, vocabularies, data formats, and protocols.

C.4.3. Metadata Services. The contractor shall provide data to facilitate and support discovery of and access to library content in any format, but typically for digital materials. Metadata may be created manually or automatically using software.

Types of metadata customers may require include but are not limited to the following:

- **Descriptive metadata:** describes a resource, its content, its identifying characteristics for purposes such as discovery and identification
- **Structural metadata:** describes how the pieces of a single resource fit together and how an object exists in relationship to other objects
- **Administrative metadata:** provides information to help manage a resource, such as when and how it was created, file type and other technical information, and who can access it. There are several subsets of administrative data; two that sometimes are listed as separate metadata types are:
 - **Technical metadata:** technical details about the object and its instantiation such as its file format, file size, and how to open, access and use it
 - **Rights management metadata:** intellectual property rights and use information
 - **Preservation metadata:** information needed to archive and preserve a resource, including actions taken on an object in order to ensure its longevity and viability

C.4.4. Physical Processing Services. The contractor shall prepare tangible library materials for placement and use within library collections. Physical processing tasks include but are not limited to the following:

- Apply accession numbers
- Apply property stamps
- Create circulation cards
- Affix pockets for circulation cards and accompanying material
- Apply protective plastic covers, laminates, or cases
- Generate and affix barcode labels
- Generate and affix spine labels/call numbers
- Apply detection strips or slips

- Apply label protectors
- Remove fasteners

C.5 SUBCONTRACTING

No subcontracting shall be permitted without the approval of the FEDLINK Contracting Officer in writing.

C.6. CONTRACT PERFORMANCE

Specific requirements, delivery schedules, and reporting requirements will be identified in individual task orders. The contractor shall provide program management and oversight of this contract and all task orders issued hereunder to include:

- Quality control of services and deliverables
- Project planning, implementation, and reporting
- Detailed invoicing with itemized prices
- Regular meetings with the Contracting Officer's Representative (COR) and other customer staff members
- Management of contractor on-boarding and exiting processes based on government procedures, including any required background investigations

C.7. STAFFING, KEY PERSONNEL, AND TASK ORDER MANAGEMENT

C.7.1. Staffing

The Contractor shall be responsible for providing staff in sufficient quantity to perform the work under this contract.

The Contractor shall provide only those personnel who are fully qualified, trained, experienced, and competent in their respective field(s) to perform the assigned work. No trainee and/or apprentice shall be assigned without the prior approval of the CO. The Contractor shall be responsible for continuously monitoring, managing, and controlling the work of its employees, and shall make its best efforts to retain staff members who have gained experience on this contract, and to minimize staff turnover.

C.7.1.1. The Government reserves the right to require the Contractor to reassign from this contract any Contractor employee whose conduct is unsuitable, such as to cause reckless endangerment or otherwise jeopardize the safety of others in the workplace, or whose continued use under the contract is deemed contrary to the best interest of the Government.

C.7.2. Key Personnel

All key personnel must be approved by the Government contracting officer. Should a key personnel change occur, the Contractor shall find a suitable replacement within 30 days that is acceptable to customer. No diversion or substitution shall be made by the Contractor without written consent of the Contracting Officer; provided, that the Contracting Officer may ratify a diversion or substitution in writing and that ratification shall constitute the consent of the Contracting Officer required by this clause.

C.7.2.1 Contract Manager (CM)

The contractor shall provide a Contract Manager (CM) that shall be responsible for overall administration of this contract and associated task orders. The name of this person and an alternate who shall act for the contractor when the CM is absent shall be designated in writing to the Contracting Officer. The CM and the alternate shall be designated as key personnel in accordance with Library clause LC52.237-1.

The CM shall be trained and knowledgeable in all areas of work defined in the contract, and be familiar with Government regulations, policies, procedures and terminology to ensure effective oversight and management of contractor staff.

The CM shall possess the ability to effectively manage both the contractor employees and the Government provided workload without specific direction from the Government COR. For any matters/issues that arise during performance of the contract, the CM shall be accountable to the Contracting Officer, COR, and Government Program Manager. Additional key personnel may be identified on individual task orders.

The contractor's employees shall receive direction from the contractor CM, based on instruction and feedback from the Government COR. The CM shall assist the Government COR, provide recommendations to Government management, and inform Government management of potential problems.

C.7.3. TASK ORDER MANAGEMENT

C.7.3.1 Task Order Manager (TOM)

A Task Order Manager shall be identified for each award resulting from this IDIQ. The TOM shall be responsible for task order management and familiar with all terms of the IDIQ and the task order. The TOM shall be trained and knowledgeable in the areas of work defined in the specific task order. The TOM is the direct supervisor and first point of contact for all contract staff, monitoring attendance and work performance, validating work hours, and communicating regularly with the TPOC and FEDLINK COR on relevant task orders.

The Task Order Manager will be evaluated and assigned at the individual task order level.

C.7.3.2. The Contractor shall ensure that there is no degradation of service during those times of equipment or vehicle malfunction, and shall maintain uninterrupted performance of all services specified in this contract.

C.8. GOVERNMENT FURNISHED RESOURCES

The Library will identify Government Furnished Property and/or information (GFP/GFI) in individual task orders. Unless otherwise stated in the task order, all GFP/GFI shall be returned to the Government upon conclusion of the task orders.

Section D - Packaging and Marking

LC52.211-1 Deliveries (APR 2015)

All deliveries submitted to the CO or the COR or other Library personnel designated to receive deliverables shall clearly indicate the following information:

- a. Agency/Requiring Library Service Unit and MAIL STOP/Room Number
- b. Description of information/data being submitted
- c. Contract Number
- d. Contractor Name and Address

(End of clause)

LC52.231-1 Payment of Postage Fees (May 2015)

All postage and fees related to submission of information, including forms, and reports, etc., to the Contracting Officer or Contracting Officer's Representative (COR) or other persons designated to receive, shall be paid by the Contractor.

(End of clause)

Packaging & Marking

All physical deliverables required under this contract will be delivered in accordance with standard commercial practices and will be marked with the LC/FEDLINK contract number and the task order number.

Deliverables and other documents may also be submitted electronically.

Section E - Inspection and Acceptance

Inspection & Acceptance

E.1. Inspection and Acceptance will be conducted by FEDLINK agency POCs in accordance with FAR 52.212-4 Contract Terms and Conditions – Commercial Items (JAN 2017), unless otherwise specified in a task order. See Section E.2.

E.2. CONTRACTOR QUALITY ASSURANCE AND REVIEW

Individual task orders may include additional terms for Inspection and Acceptance.

Section F - Deliveries or Performance**PERIOD OF PERFORMANCE**

ITEM	START	END
0001	05/01/2026	04/30/2031

Deliveries or Performance Deliveries or Performance

F.1. NOTICE LISTING CONTRACT CLAUSES INCORPORATED BY REFERENCE. The following solicitation and/or contract clauses pertinent to this section are hereby incorporated by reference:

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1)

NUMBER	DATE	TITLE
52.242-15	AUG 1989	STOP-WORK ORDER
52.242.17	APR 1984	GOVERNMENT DELAY OF WORK
52.247-34	NOV 1991	F.O.B. DESTINATION

F.2. PLACE OF PERFORMANCE

Lot 1 tasks to be performed under this contract will be performed at the federal facility or location indicated by address on the individual task orders. Telework may also be permitted in the event of inclement weather, federal government shutdown, or other reasons as defined on the individual task orders. Lot 2 tasks to be performed under this contract shall be performed at the contractor's facility.

Contractor staff may be required to report on-site to obtain badges or other government-furnished property necessary for performance under this contract.

F.3. PLACE OF DELIVERY

The place of delivery is F.O.B. destination in accordance with FAR 52.247-34 (Nov 1991) unless the Customer agrees to an alternate arrangement. All deliveries will be made to the agency as specified in each Order.

Section G - Contract Administration DataLC52.201-3 Contract Administration (AUG 2015)

This contract will be administered by:

Library Contracting Officer: Catherine J. Campbell

Address: The Library of Congress, Contracts and Grants Directorate, 101 Independence Ave., S.E.

Washington D.C. 20540-9414

Phone: 202-707-1924

Email: catcampbell@loc.gov

Library Contract Specialist: Katie Bowen

Address: The Library of Congress, Contracts and Grants Directorate, 101 Independence Ave., S.E.

Washington D.C. 20540-9414

Email: katbowen@loc.gov

Library Contracting Officer Representative: TBD

Address: TBD

Phone: TBD

Email: TBD

Contractor Contract Administrator: TBD

Address: TBD

Phone: TBD

Email: TBD

(End of clause)

LC52.232-1 Library of Congress Invoice Instructions (Oct 2016)

The Contractor must prepare and submit invoices electronically to: <https://www.ipp.gov>. The Contractor may submit payment requests using other than electronic means only when alternate procedures are authorized by the contracting officer in writing. Assistance is available via the IPP Help Desk via email at: ippgroup@bos.frb.org or by commercial telephone at (866) 973-3131. Invoices shall contain the information required in FAR 52.212-4, paragraph (g).

(End of Clause)

Contract Administration Data

G.1. CUSTOMER USE OF FEDLINK CONTRACTS

LC/FEDLINK provides both contracting and accounting support to federal agencies and organizations authorized to use federal sources of supply. Together, these agencies and organizations are referred to herein as “Customers.” Even though these other agencies and organizations are defined as “Customers”, the Library of Congress and Contractor shall be the parties to any contracts or agreements resulting from the solicitation. The Library of Congress retains the right to exercise any right or claim any obligation owed to a Customer.

G.1.2. FEDLINK Transfer Pay Service

LC/FEDLINK offers only the Transfer Pay option for Library Support Services. Under the Transfer Pay option, a Customer enters into an Interagency Agreement (IAA) with LC/FEDLINK for goods or services. Then, a FEDLINK Contracting Officer issues an order or awards a contract to a Contractor for the goods and/or services that the Customer requested. After receiving the order or

contract, the Contractor provides the goods and/or services to the Customer and then submits invoices to LC/FEDLINK COR for review and to confirm that all work has been accepted. Once authorized by the FEDLINK COR, Contractor may submit invoices for payment via IPP. LC/ FEDLINK reviews the invoices, rejects improper ones, and pays acceptable ones. Under the Transfer Pay option, the Library of Congress and Contractor shall be the parties to all orders.

G.2. TRANSFER PROCEDURES AND REQUIREMENTS

G.2.1. Initiating Transfer Pay Service.

- a. **FEDLINK Order.** The Contractor will begin service for or provide goods to a Customer upon receipt of an order issued by the Library of Congress pursuant to the terms of this contract. The Contractor will not begin or renew any service for any FEDLINK Customer unless and until the Contractor has received a valid order for that Customer for the goods or services. The Contractor will not provide products/services to the Customer in excess of the amount indicated on the order. The Government is not liable for products or services provided which exceed the order amount. Contractors will invoice only for supplies delivered or services performed in accordance with a properly issued order.
- b. **Order Acceptance and Notification.** Upon receiving the task order, the Contractor will contact the Customer immediately to begin service. If the Contractor questions an order or cannot accept an order, the Contractor will notify the Contracting Officer and the Contract Specialist identified on the task order within ten (10) days of receipt via email to the CO, the COR, and LC/ FEDLINK Contracts at fedlinkcontracts@loc.gov. Performance under any FEDLINK order constitutes Contractor's acceptance of all contract terms and conditions. The Contractor will inform FEDLINK Fiscal Operations (FFO) in writing of any account identification or user identification the Contractor has assigned to the Customer within thirty (30) days of receipt of task orders from LC/FEDLINK.

Customer Identification. FEDLINK assigns a unique four-character FEDLINK ID to each Transfer Pay Customer. After receiving the task order, all Contractor correspondence and oral communications with FEDLINK regarding Customers will identify the Customer by the FEDLINK ID and Order number for the Customer as indicated on the task order. The Contractor may also assign its own account numbers, user IDs or other identifiers to Customers, but may only use such identifiers in addition to and not instead of the FEDLINK ID.

G.3. FEDLINK INVOICE INSTRUCTIONS

An invoice is the contractor's bill or written request for payment under the contract for supplies delivered or services performed. The contractor will invoice only for the amount of supplies delivered or services performed. The contractor will prepare invoices and submit them to the payment address identified on the order. All proper invoices (except summary invoices) and all detailed usage reports will include the information specified below and be formatted as specified below. Invoices that do not meet these specifications are defective. The payment office will reject them and return them to the contractor without payment. Invoices for products/services that exceed the funding level authorized on the order will be rejected for insufficient funds and returned to the contractor without payment. The contractor will promptly resubmit the invoice when the condition(s) causing the rejection have been corrected.

All inquiries relating to FEDLINK contractor payments should be directed to:

The Library of Congress
 FEDLINK Fiscal Operations
 ATTN: Invoice Processing Room
 LA-220 101 Independence Ave., SE
 Washington, D.C. 20540-4935
 Telephone: (202) 707-4961
 Email:FEDLINKInvoices@loc.gov

Discrepancies in pricing or terms and conditions of the contract or task order should be directed to the LC/FEDLINK Contracting Officer.

G.3.1. Invoice Information Invoice Data Elements.

The contractor shall supply the following information on all invoices:

1. Contractor information:

- Name and address of the contractor.
- Name and address of the contractor official to whom payment is to be sent via Electronic Funds Transfer (EFT) (will be the same as designated in the Contract).

2. Contractor's invoice number. The invoice number shall uniquely identify the invoice. Any invoice with a number which duplicates another invoice's number is defective and will be rejected.
3. Invoice date in mm/dd/yyyy format. (Note: invoice date shall not be before the Order Date)
4. Government agency identification:
 - FEDLINK ID
 - Name and address
 - FEDLINK contract/order number
5. Order information:
 - Contract line item number(s) (CLIN)
 - Description, quantity, unit, unit price, and extended price of deliverables.
 - Any prompt payment discount.
 - Order date and the date of the order in mm/dd/yyyy format. The order date is the the task order's effective date.

G.3.2. Invoice Submission

(a) Electronic Invoicing. Invoices shall be submitted in the Invoice Processing Platform (IPP) at <https://www.ipp.fms.treas.gov/>. For assistance with IPP, please contact IPP support at <https://www.ipp.gov/>.

(b) Accepted Deliverables. All invoices for all task orders issued under this contract shall only be submitted for products and services accepted in writing.

(c) Copy for Prior Approval. Before submitting an invoice in IPP for payment, the contractor shall send a copy of the invoice and supporting documents (see (e) below) via email to the COR and Government Project Manager. After the COR approves the invoice, the contractor shall submit the invoice in IPP.

(d) Schedule. The contractor shall invoice FEDLINK on a regular basis, after acceptance of delivered work and approval of the invoice copy.

(e) Format. Invoices shall be in PDF format. Invoices shall be accompanied by supporting documents, including the government acceptance report and details of the deliverables.

G.3.3. Invoice Review and Payment

(a) For purposes of this clause, "invoice payment" means a government disbursement of monies to a contractor pursuant to a contract or other authorization for supplies or services issued by the Government. This includes payments for partial deliveries that have been accepted by the Government and final costs or fee payments where amounts owed have been settled between the Government and the contractor. Payment will be considered as being made on the day an electronic funds transfer is made. All days referred to in this clause are calendar days. The designated billing office for transfer pay accounts is FEDLINK.

(b) Payment Due Date. The due date for making invoice payments will be the later of the following two events:

The 30th calendar day after the designated billing office has received a proper invoice from the contractor. If the payment due date falls on a weekend or holiday, payment will be made on the following business day. The 30th day after government acceptance of supplies delivered or services performed by the contractor. On a final invoice where the payment amount is subject to a contract issue or dispute, acceptance will be deemed to have occurred on the effective date of the dispute resolution.

(c) Return of Improper Invoices. If the invoice does not comply with requirements herein, then the contractor will be notified of the defect within seven (7) days after receipt of the invoice at the designated billing office. Rejected invoices should be accompanied by a reason for the rejection and may be resubmitted when the condition(s) causing the rejection is corrected. If no reason is provided, contractor shall contact their FEDLINK Contracting Officer or Contracting Officer's Representative (COR).

G.3.4. Refunds or Other Adjustments

All invoice adjustments will be processed through the FEDLINK Fiscal Office (FFO).

The Government may adjust invoices to remove invalid charges that are not authorized or payable under the contract, such as line items for excluded products/services, sales tax and freight charges.

Where refunds are required, FEDLINK will provide instructions to the contractor and the contractor will promptly remit amounts due within 15 business days of notification from the FEDLINK Contracting Officer or Fiscal Office (FFO).

Section H - Special Contract Requirements

LC52.201-1 Contracting Officer's Representative (COR) Appointment and Authority (Jan 2016)

(a) Performance of work under this contract is subject to the technical direction of the COR. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the contract are accomplished satisfactorily.

(b) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

- (1) Constitutes additional work outside the contract specification(s)/work statement;
- (2) Constitutes a change as defined in the “Changes” clause of this contract;
- (3) Causes an increase or decrease in the contract price, or the time required for contract performance;
- (4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;
- (5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or
- (6) Directs, supervises or otherwise controls the actions of the contractor's employees.

(c) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR or the designated representative falls within the limitations of (b) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(e) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the “Disputes” clause of this contract.

(End of clause)

LC52.203-1 Contractor Publicity (Oct 2013)

The Contractor, or any entity or representative acting on behalf of the Contractor, may not refer to the equipment or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such equipment or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government will consider institution of all remedies available under applicable law.

(End of clause)

LC52.204-1 Collections Security (Dec 2013)

(1) The Library is a public institution responsible for making its resources (collections and staff) available to the Congress and the American people. To achieve a balance between access and security, the Library requires everyone (staff, visitors, interns, contractors, etc.), to always use due diligence and protect its assets during use.

(2) Physical access to Library collections is limited to staff and/or determined by the host office. In addition, established requesting processes in the various readings rooms must be followed.

(3) Loan Privileges. Contractor employees may obtain loans of Library property for internal use and Library work-related purposes.

(i) Loan of Library Property. All loans of Library property must be approved and documented by the host Library Services office. Contractor staff shall obtain a Library "General Pass" (Form LW 12/54 (rev2/88)) for each loan.

(ii) Liability - Loss or Damage of Library Property. Use or loan of all Library property and signature on this contract means that the contractor acknowledges and agrees to: (a) ensure the return all Library property issued in the same condition as borrowed; (b) accept responsibility and liability for the negligent loss or damage of issued or borrowed Library property; and (c) ensure that the loaned property is used for Library purposes and not loaned to any other person.

(End of clause)

LC52.204-3 Information Systems Security (Sept 2018)

(1) Computer Security Policy. The Library requires anyone using or accessing its digital assets (including networks, servers, workstations, systems, data, web pages, and email) to protect them and use them only for official business, and only in accordance with Library regulations and applicable Library bargaining agreements. Unauthorized or inappropriate use may be grounds for termination or other contractual remedy.

(2) Privacy Policy. No one has the right to privacy while using any Library computer system, including internet or email services. Usage may be monitored.

(3) Level of Access. The Host Office will determine the level of access to the Library's IT equipment, staff and software needed to successfully perform under this Contract. Access may include, for example, email, word processing, internet, and intranet.

(4) Mandatory IT Security Training. Contractor personnel must successfully complete mandatory information systems security training prior to use of or access to any of the Library's digital assets. The required training is available online at <http://www.loc.gov/extranet/cld/>. Contractor staff with access to Library digital assets shall complete the information systems security training annually. The training is available on the Library intranet at: <http://www.loc.gov/staff/cld/>.

(End of clause)

LC52.204-4 Contractor Suitability (JAN 2019)

Work under this contract is unclassified. However, the Library of Congress has a contractor suitability program, which includes background investigations of contractor personnel who will have regular, ongoing, unescorted access to the Library's buildings, grounds, collections, or information technology systems to ensure they meet basic standards of honesty and trustworthiness.

(1) Any access to non-public Library facilities and information technology systems will require completion and successful vetting of a security application request (release forms, fingerprints, and, if applicable, E-QIP background investigation.) Contracts should anticipate a minimum of two weeks for the process, provided no adverse or incomplete information is received.

(2) The Library does not determine the suitability of employees to work for the contractor firm that hires them. The Library's interest is in determining whether the contractor personnel should be granted access to Library facilities greater than the access that would be afforded to a member of the general public.

(3) The contractor will ensure the Library's Personnel Security Office is notified of all changes to personnel performing work on this contract. The Personnel Security Office can be notified at the following email address: PSD@loc.gov and contacted via phone at: (202) 707-5618.

(4) The fact that the Library may conduct background investigations on assigned contractor personnel does not relieve the contractor of the responsibility to provide qualified, reliable personnel of sound character and conduct.

(End of clause)

LC52.237-1 Key Personnel (Aug 2014)

The personnel designated as key personnel in this contract are considered to be essential to the work being performed hereunder. At least 30 days prior to diverting any of the specified individuals to other programs or contracts or as soon as possible if an individual must be replaced, for example, as a result of leaving the employ of the contractor, the contractor shall notify the contracting officer and identify proposed substitutions. No diversion or substitution shall be made by the contractor without written consent of the contracting officer.

The following personnel have been identified as Key Personnel in the performance of this contract:

Position/Labor Category	Name
Contract Manager	TBD
Contract Manager (Alternate)	TBD

(End of clause)

LC52.237-2 Conduct of Work (May 2015)

The personnel employed by the Contractor shall be capable employees qualified in this type of work. The Contractor shall be responsible for all damage to Library property by the activities of his employees resulting from these operations. The Contracting Officer may require removal from work on this contract any employee(s) that may be deemed incompetent, careless, insubordinate, unsuitable, or otherwise objectionable, or whose continued employment is deemed contrary to the public interest or inconsistent with the best interest of or the security of the Library.

(End of clause)

LC52.239-1 Information Security (May 2016)

The work to be conducted is considered Controlled Unclassified Information (CUI) pursuant to National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53 (rev 4) or current version. The Contractor shall ensure that all non-public Library information processed under this contract shall be protected from unauthorized use and mishandling by the Contractor. Information includes both hard copy (paper) formats and soft copy (stored in electronic form, e.g., hard disks, tapes, flash drives, CD-ROM/CD-R, etc.)

a) The Contractor shall store hard copies and soft copies contained on removable media (e.g., tapes, floppy disks, flash drives, CD-ROM/CD-R, etc.) in a government-approved storage container per the direction of the Contracting Officer Representative (COR) or the Library of Congress Project Manager when not under the direct control of Contractor Key Personnel.

b) The Contractor shall treat any information developed on security vulnerabilities and any Government provided non-public information as "CUI".

- (c) The Contractor personnel shall label and protect this information as “Security Category: Moderate”, placing this designation in the footer.
- (d) The Contractor shall ensure that all documents designated “Security Category: Moderate”, “Security Category: High” and “Limited Official Use Only” are not emailed to or from an external email system. These documents may only be emailed between Library of Congress email accounts, or within a secured corporate email network.
- (e) The Contractor shall ensure that all documents designated “Security Category: Moderate”, “Security Category: High” and “Limited Official Use Only” are shredded, burned or otherwise destroyed before being disposed of in accordance with applicable corporate and federal records management policies.
- (f) The Contractor shall dispose of all documents designated “Security Category: Moderate”, “Security Category: High” and “Limited Official Use Only” remaining in the Contractor’s possession at the end of the contract term.
- (g) The Contractor shall ensure that all Contractor workstations used to process Library information utilizes anti-virus and anti-spyware utilities that are configured to continuously monitor and to automatically update as well as having automatic operating system patching in place.
- (h) The Contractor shall ensure that all Contractor workstations used to process Library information employ a firewall that can either be software running on the workstation or a stand-alone firewall that protects the workstation from unauthorized access from any other devices, including devices on the Contractor’s corporate network.
- (i) The Contractor shall ensure that all Library information that is labeled “Security Category: Moderate”, “Security Category: High” and “Limited Official Use Only” is encrypted using a Federal Information Processing Standards Publication (FIPS) 140-2 validated application configured in FIPS mode. This includes information stored on internal hard drives and removable devices (e.g., CD-Rs, flash drives, etc.)
- (j) The Contractor must provide a written list of anti-virus, anti-spyware, firewall, encryption products, versions and proof of licenses, along with the automatic operating system patching status, MAC address (if applicable) and user name for each system being used to process Library information.
- (k) In accordance with NIST SP 800-61 (rev 2, as updated), the Contractor shall report to infosec@loc.gov, the Contracting Officer, and the COR any adverse events (adverse events are currently defined as events with a negative consequence, such as system crashes, packet floods, unauthorized use of system privileges, unauthorized access to sensitive data, and execution of malware that destroys data) that are computer related or computer security incidents (computer security incident is currently a violation or imminent threat of violation of computer security policies, acceptable use policies, or standard security practices) concerning Library CUI within 24-hours of its discovery. The contractor shall coordinate its response to such an event or incident with the Library.
- (l) The Contractor shall not provide any government-furnished non-public documents or information or licensed material in any form to anyone other than the Contracting Officer, the COR or the Library of Congress Project Manager without the written approval of the Contracting Officer, the COR or the Library of Congress Project Manager during the period of this contract or at any time afterwards.
- (m) The Contractor shall not release any government documents or information related to IT Security in any form without the written approval of the Library's IT Security Group.
- (n) The Contractor shall ensure that all Contractor personnel sign non-disclosure statements.
- (o) The Contractor shall ensure that all Contractor personnel complete the Library of Congress IT Security Awareness Training on an annual basis.

(End of clause)

LC52.239-2 Systems Development Life Cycle (Sept 2018)

The Information Technology to be provided under this contract is subject to the procedures established in the Library’s Systems Development Life Cycle (SDLC) as follows:

- (a) Requirements: The Contractor shall gather and analyze requirements and produce a system requirements document (SRD) accordingly.

(b) Design: The Contractor shall perform design analysis and complete a Systems Design Document which satisfies the requirements in the aforementioned SRD.

(c) Development: The Contractor shall develop, customize and/or configure the system according to system requirements and design specifications.

(d) Testing: The Contractor shall test the solution to ensure it satisfies all requirements, including security requirements documented in Library of Congress Directive (LCD) 5-410.1, Information Technology Security Policy. The Contractor shall remediate any identified vulnerabilities and weaknesses in accordance with LCD 5-410.1.

(e) Implementation: The Contractor shall support implementation and deployment of the tested solution into the Library's production environment.

(f) Documentation: The Contractor must either use the Library's SDLC templates, which will be provided by the COR upon request, or use an alternative format which satisfies all SDLC requirements as stated in (a) through (e) above. The COR will approve all SDLC deliverables.

(End of clause)

LC52.239-5 Systems Hosted by External Hosting Providers (Sept 2018)

For any non-Library of Congress owned and operated systems supporting a hosted application, including cloud services, security devices, shared servers, backup devices, and management systems, the Contractor shall provide:

(a) Design documentation demonstrating that the environment is Federal Risk and Authorization Management Program (FedRAMP) compliant

(b) Assessment and Authorization documentation for the operating environment

(c) Documented test results, including individual test items, showing that the applications, hosting platforms and associated management systems have implemented the minimum security controls per FIPS 199) of the system.

(d) Access for the Library to conduct scanning, security testing and assessment, and penetration testing of the operating environment, including support for any remediation issues in accordance with the Library policy on remediation documented in Library of Congress Directive (LCD) 5-410.1, Information Technology Security Policy.

(e) The contractor shall sign a Memorandum of Understanding (MOU)/Interconnection Security Agreement (ISA) with the Library of Congress in accordance with NIST SP 800-47, Security Guide for Interconnecting Information Technology Systems. This may be an addendum to the contract between the Library and the Contractor.

(End of clause)

LC52.239-6 Assessment and Authorization Privacy Requirements (Jul 2016)

The contractor shall be responsible for the following privacy and security safeguards:

1. To the extent required to carry out the assessment and authorization process and continuous monitoring, to safeguard against threats and hazards to the security, integrity, and confidentiality of any non-public Library data collected and stored by the contractor, the contractor shall afford the Library access to the contractor's facilities, installations, technical capabilities, operations, documentation, records, and databases.
2. The Library has the right to perform manual or automated audits, scans, reviews, or other inspections of the contractor's IT environment being used to provide or facilitate services for the Library. In accordance with the Federal Acquisitions Regulations (FAR) clause 52.239-1, contractor shall be responsible for the following privacy and security safeguards:
 - a. The contractor shall not publish or disclose in any manner, without the Contracting Officer's written consent, the details of any safeguards either designed or developed by the contractor under this contract or otherwise provided by the Library.
 - b. To the extent required to carry out a program of inspection to safeguard against threats and hazards to the security, integrity, and confidentiality of Library data, the contractor shall afford the Library access to the contractor's facilities, installations, technical capabilities, operations, documentation, records, and databases within 72 hours. The program of inspection shall include:
 - i. Authenticated and unauthenticated operating system/network vulnerability scans
 - ii. Authenticated and unauthenticated web application vulnerability scans
 - iii. Authenticated and unauthenticated database application vulnerability scans
 - iv. Automated scans can be performed by Library personnel, or agents acting on behalf of the Library, using Library operated equipment, and Library specified tools.

- c. If new or unanticipated threats or hazards are discovered by either the Library or the contractor, or if existing safeguards have ceased to function, the discoverer shall immediately bring the situation to the attention of the other party.
3. If the contractor chooses to run its own automated scans or audits, results from these scans may, at the Library's discretion, be accepted in lieu of Library performed vulnerability scans. In these cases, scanning tools and their configuration shall be approved by the Library. In addition, the results of contractor-conducted scans shall be provided, in full, to the Library.
4. SENSITIVE INFORMATION STORAGE. In addition to the requirements of LC52.239-1, Sensitive But Unclassified (SBU) information, data, and/or equipment will only be disclosed to authorized personnel on a Need-To-Know basis. The contractor shall establish appropriate administrative, technical, and physical safeguards to ensure the security and confidentiality of this information, data, and/or equipment is properly protected. When no longer required, this information, data, and/or equipment will be returned to Library control, destroyed, or held until otherwise directed. Destruction of items shall be accomplished by following LC52.239-1 and applicable provisions of NIST Special Publication 800-88, Guidelines for Media Sanitization.
5. The disposition of all data will be at the written direction of the Contracting Officer Representative (COR), this may include documents returned to Library control; destroyed; or held as specified until otherwise directed. Items returned to the Library shall be hand carried or sent by certified mail to the COR.
6. PROTECTION OF INFORMATION. The contractor shall be responsible for properly protecting all information used, gathered, or developed as a result of work under this contract. The contractor shall also protect all Library data, equipment, etc. by treating the information as sensitive. All information about the systems gathered or created under this contract should be considered as SBU information. It is anticipated that this information will be gathered, created, and stored within the primary work location. If contractor personnel must remove any information from the primary work area they should protect it to the same extent they would their proprietary data and/or company trade secrets. The use of any information that is considered personally identifiable information (PII) will be utilized in full accordance with Library of Congress Regulation 5-920.
7. The Library will retain unrestricted rights to Library data. The Library retains ownership of any user created/loaded data and applications hosted on contractor's infrastructure, as well as maintains the right to request full copies of these at any time. If the data that is processed and stored by the various applications within the network infrastructure contains financial data as well as PII, this data and PII shall be protected against unauthorized access, disclosure or modification, theft, or destruction. The contractor shall ensure that the facilities that house the network infrastructure are physically secure. The data must be available to the Library upon request within one business day or within the timeframe specified otherwise, and shall not be used for any other purpose other than that specified herein. The contractor shall provide requested data at no additional cost to the Library. No data shall be released by the contractor without the consent of the Library in writing. All requests for release must be submitted in writing to the contracting officer and the COR.
8. CONFIDENTIALITY AND NONDISCLOSURE. The preliminary and final deliverables and all associated working papers and other material deemed relevant by the agency that have been generated by the contractor in the performance of this contract, are the property of the U.S. Library and must be submitted to the COR at the conclusion of the contract. The U.S. Library has unlimited data rights to all deliverables and associated working papers and materials in accordance with FAR 52.227-14. All documents produced for this project are the property of the U.S. Library and cannot be reproduced, or retained by the contractor. All appropriate project documentation will be given to the agency during and at the end of this contract. The contractor shall not release any information without the written consent of the contracting officer.
9. DISCLOSURE OF INFORMATION. Any information made available to the contractor by the Library shall be used only for the purpose of carrying out the provisions of this contract and shall not be divulged or made known in any manner to any persons except as may be necessary in the performance of the contract. In performance of this contract, the contractor assumes responsibility for protection of the confidentiality of Library records and shall ensure that all work performed by its subcontractors shall be under the supervision of the contractor or the contractor's responsible employees. Each officer or employee of the contractor or any of its subcontractors to whom any Library record may be made available or disclosed shall be notified in writing by the contractor that information disclosed to such officer or employee can be used only for that purpose and to the extent authorized herein. Further disclosure of any such information, by any means, for a purpose or to an extent unauthorized herein, may subject the offender to criminal sanctions imposed by 18 U.S.C. §§ 1030.

(End of Clause)

LC52.204-2 Conduct on Library Premises (July 2021)

1. Access to Library buildings and grounds is governed by 36 C.F.R. part 702 - Conduct on Library Premises. Contractor staff must comply with these requirements and restrictions and related Library of Congress Regulations and Directives.
2. The Library is committed to preventing and addressing all forms of discriminatory harassment and to ensuring that Equal Employment Opportunity (EEO) principles are fundamental to Library culture. Everyone — employees, interns, volunteers, contractors, researchers, and visitors — is expected to help make the Library a respectful environment free from offensive behavior.

- a. Library of Congress employees, contractors, interns, volunteers, researchers, patrons, and other visitors have a right to Library facilities that are free from discrimination based on their race, color, national origin, religion, sex, sexual orientation, gender identity, age (40 and over), disability, genetic information, union affiliation, political affiliation, or marital status.
- b. The Library does not tolerate discrimination – including sexual harassment, other forms of harassment, or a hostile work environment – based on these factors. The Library does not tolerate retaliation against anyone who engages in any form of protected EEO activity.
- c. Contractor (including subcontractor) staff alleged to have engaged in discrimination or retaliation in the performance of this contract may be prohibited from entering Library facilities to perform work under their contracts. Contractors are required to promptly respond to all Library inquiries into allegations of discrimination, and must, in good faith, cooperate with Library investigations. Good faith cooperation includes, but is not limited to, making contractor staff available for:
1. Formal and informal interviews by Library agents investigating allegations of discrimination;
 2. Reviewing and signing appropriate affidavits or declarations summarizing statements provided by such contractor staff during the course of an investigation;
 3. Producing documents requested by the Library agents conducting the investigation; and
 4. Preparing for and providing testimony in depositions or in administrative hearings.
- (End of clause)

LC52.239-3 ASSESSMENT AND AUTHORIZATION (ALT I) (JAN 2016)

The information technology identified in this contract will be subject to review and approval of Assessment and Authorization (A&A) prior to connecting the system(s) to the Library of Congress Network.

- (a) The contractor shall provide the COR with documentation demonstrating Authorization.
- (b) The Library will perform a security assessment, assessment, risk assessment, and security testing & evaluation pursuant to NIST SP 800-37.
- (c) The Contractor shall provide Authorization support to the Authorizing Official, including producing copies of the Assessment Package, drafting memorandums and assisting in the briefing of the Designated Approving Authority.
- (d) The Contractor shall ensure that the IT system is not connected to the Library of Congress Data Network until accredited.
- (End of clause)

Section I - Contract Clauses

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.acquisition.gov/dfars>

[Insert one or more Internet addresses]

(End of clause)

Clause	Title	Fill-ins
52.202-1	Definitions (Jun 2020)	
52.203-3	Gratuities (Apr 1984)	
52.203-5	Covenant Against Contingent Fees (May 2014)	
52.203-7	Anti-Kickback Procedures (Jun 2020)	
52.203-13	Contractor Code of Business Ethics and Conduct (Nov 2021)	
52.204-7	System for Award Management (Jul 2013)	

Clause	Title	Fill-ins
52.204-13	System for Award Management Maintenance (Oct 2018)	
52.204-19	Incorporation by Reference of Representations and Certifications (Dec 2014)	
52.204-21	Basic Safeguarding of Covered Contractor Information Systems (Nov 2021)	
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)	
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services (Nov 2023)	
52.216-22	Indefinite Quantity (Oct 1995)	(d): "04/30/2036"
52.227-14	Rights in Data-General (May 2014)	
52.227-19	Commercial Computer Software License (Dec 2007)	
52.232-7	Payments under Time-and-Materials and Labor Hour Contracts (Nov 2021)	(h)(2): "30th"
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)	
52.233-1	Disputes (May 2014)	
52.233-4	Applicable Law for Breach of Contract Claim (Oct 2004)	
52.239-1	Privacy or Security Safeguards (Aug 1996)	
52.242-13	Bankruptcy (July 1995)	
52.245-1	Government Property (Sep 2021)	
52.253-1	Computer Generated Forms (Jan 1991)	

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Jan 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004)(Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

X (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

 (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

X (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

 (6) [Reserved].

 (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

 (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

 (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

 (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

 (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

 (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

 (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

 (14) [Reserved].

 (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

 (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

 (17) [Reserved]

 (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

 (ii) Alternate I (Mar 2020) of 52.219-6.

 (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

 (ii) Alternate I (Mar 2020) of 52.219-7.

X (20) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)).

X (21)(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

___(ii) Alternate I (Nov 2016) of 52.219-9.

___(iii) Alternate II (Nov 2016) of 52.219-9.

___(iv) Alternate III (Jun 2020) of 52.219-9.

___(v) Alternate IV (Jan 2025) of 52.219-9.

___(22)(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

___(ii) Alternate I (Mar 2020) of 52.219-13.

___(23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

___(24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

___(25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

___(26)(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

___(ii) Alternate I (Mar 2020) of 52.219-28.

___(27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

___(28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

___(29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

___(30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

___(32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025) (E.O. 13126).

X (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

X (34)(i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

___(ii) Alternate I (Feb 1999) of 52.222-26.

X (35)(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

___(ii) Alternate I (Jul 2014) of 52.222-35.

X (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

___(ii) Alternate I (Jul 2014) of 52.222-36.

X (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

___(ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

___(40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

___(41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c) (3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___(ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___(42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

___(43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

___(44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

___(45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

___(46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).

___(47)(i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

___(ii) Alternate I (Jan 2017) of 52.224-3.

___(48)(i) 52.225-1, Buy American--Supplies (Oct 2022) (41 U.S.C. chapter 83).

___(ii) Alternate I (Oct 2022) of 52.225-1.

___(49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Nov 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

___(ii) Alternate I [Reserved].

___(iii) Alternate II (Jan 2025) of 52.225-3.

___(iv) Alternate III (Feb 2024) of 52.225-3.

___(v) Alternate IV (Oct 2022) of 52.225-3.

___(50) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

___(51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___(52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___(53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___(54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

X (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

__ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (Oct 2018) (31 U.S.C. 3332).

X (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

__ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

__ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

X (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017)(15 U.S.C. 637(d)(13)).

__ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of 52.247-64.

__ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

X (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67).

X (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67).

X (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

X (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

__ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause--

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015)

(x) 52.222-26, Equal Opportunity (Sept 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212)

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 05/01/2026 through 04/30/2031 [insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00 [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor--

(1) Any order for a single item in excess of \$100,000,000.00 [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of \$100,000,000.00 [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-31 Time-and-Materials/Labor-Hour Proposal Requirements-Commercial Acquisition (Nov 2021)

(a) The Government contemplates award of a Time-and-Materials or Labor-Hour type of contract resulting from this solicitation.

(b) The offeror must specify fixed hourly rates in its offer that include wages, overhead, general and administrative expenses, and profit. The offeror must specify whether the fixed hourly rate for each labor category applies to labor performed by--

- (1) The offeror;
- (2) Subcontractors; and/or
- (3) Divisions, subsidiaries, or affiliates of the offeror under a common control.

(End of provision)

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days of expiration [*insert the period of time within which the Contracting Officer may exercise the option*].

(End of clause)

LC52.212-5 52.212-5 (DEV) Contract Terms And Conditions Required To Implement Statutes Or Executive Orders - Commercial Items (MAY 2015)

(a) FAR 52.212-5, The clause is modified as follows:

- (1) The Librarian of Congress has the same rights and access provided to the Comptroller General in FAR 52.212-5.

(End of clause)

LC52.216-2 Fair Opportunity (FEB 2020)

Orders will be issued by the contracting officer in writing. In accordance with FAR 16.505(b)(1) – Fair Opportunity, all contractors will be provided a fair opportunity to be selected for award of each order under this contract unless one of the FAR 16.505(b)(2) exceptions applies.

Discrete evaluation criteria may be established at the order level. Otherwise, orders will be evaluated for: (1) the technical capability of the offeror to fulfill order requirements; (2) past performance information on prior orders under this contract or other contracts known to the agency, and recent and relevant contracts contained in the Contract Performance Assessment Reporting System (CPARS), to assess the level of risk to successful performance; and (3) price as stated in the contract or submitted in response to a request for proposals.

If the order does not exceed the simplified acquisition threshold, the contracting officer need not contact each of the multiple awardees under the contract before selecting an order awardee if the contracting officer has information available to ensure that each awardee is provided a fair opportunity to be considered for each order. Otherwise, the contracting officer will issue a fair notice of intent to make a purchase (such as a request for proposal or request for quotation) describing the required goods or services, stating the evaluation criteria, and requesting information to support evaluation and selection of an order awardee. Unless otherwise notified in the notice of intent to make a purchase, contractors will have five business days to respond.

In all cases, the Library may conduct technical and/or price negotiations as necessary.

In all cases, the Library may in its discretion issue an order either unilaterally or bilaterally (requiring the contractor's signature). In the event that the Library does not receive a response to a request for proposals, the Library may nevertheless issue a unilateral order if a task order award can be made based on information contained in the contract file.

The contractor shall not accept orders that exceed the "not-to-exceed" amount of the contract or that are placed after the end of the contract ordering period.

All orders are subject to the terms and conditions of this contract. In the event of a conflict between an order and this contract, the contract shall control.

XIf checked, the provisions below apply to this order.

The Library is considering issuing additional logical follow-on task orders (related to the work performed under this order) on a sole-source basis in the interest of economy and efficiency in accordance with FAR 16.505(b)(2)(C). The contractor must demonstrate satisfactory performance during the execution of previous related task order(s) in order to be eligible for logical follow-on task orders.

(End of clause)

LC52.232-25 52.232-25 (DEV) Prompt Payment (Jul 2013)

The Library of Congress is not an agency subject to the Prompt Payment Act. 31 U.S.C 3901(a)(1). The clause is modified as follows.

(1) The following new paragraph (iv) is added to the conditions for paying interest penalty payments in section (a)(4): "(a)(4)(iv) The contract or purchase order contained a provision that expressly required the Library of Congress to pay an interest penalty."

(2) The reference in section (a)(5)(ii) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) Section (a)(6) is replaced with the following: "Interest penalty payments shall be handled in accordance with the prompt Payment clause at FAR 52.232-25 as modified by the Library."

(4) Section (b) relating to Contract Financing Payment is deleted.

(End of clause)

LC52.233-1 52.233-1 (DEV) Disputes (MAY 2014)

To reflect the provisions of the Legislative Branch Appropriations Act, 2008 (Pub. L. 110-161, div. H., title I, § 1501, Dec. 26, 2007, 121 Stat. 2249, 31 U.S.C. § 702 note), the clause is modified as follows:

(1) The amount in sections (c), (d)(2)(i), and (e) is \$50,000 instead of \$100,000.

See also regulations of the Government Accountability Office Contract Appeals Board at 4 C.F.R. part 22.

(End of clause)

I.1 REQUIREMENTS FOR IMPLEMENTING SECTION 508 STANDARDS FOR THE LIBRARY OF CONGRESS

NOTE: The following applies to all Library of Congress contracts, assistance agreements, and task/delivery order requests where the Library of Congress is the customer arising from indefinite-delivery type contracts, Blanket Purchase Agreements, or Basic Ordering Agreements in which the contract, assistance agreement, or task/delivery order request contains Information and Communication Technology (ICT) as a deliverable.

(a) All Information and Communication Technology (ICT) supplies, information, documentation, and services that are developed, acquired, maintained or delivered under this contract or order must comply with the Americans with Disabilities Act (ADA) (See 42 U.S.C. §12209 to see how the ADA applies to the Library of Congress). It is Library policy that, to the extent required by the ADA, contract deliverables should meet accessibility standards for ICT established under Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d (as set forth in 36 C.F.R. 1194.1 including Appendix A, Appendix C, Appendix D and other standards incorporated by reference such as World Wide Web Consortium (W3C) Web Content Accessibility Guidelines).

(b) By submitting a proposal, the contractor certifies that their ICT meets the applicable accessibility standards and the contractor must specifically identify any applicable accessibility standards that the ICT fails to meet in a Voluntary Product Accessibility Template (VPAT) or other Accessibility Conformance Report (ACR). Upon delivery, the contractor must again certify that their ICT meets the accessibility standards represented in its pre-award proposal. This also means that the contractor shall ensure that maintenance upgrades, substitutions, and replacements to ICT pursuant to this contract do not reduce the ICT's original level of conformance with the applicable accessibility standards at the time of contract award.

(c) The Library reserves the right to perform independent testing to validate that the solution conforms with the standards set forth above (including, but not limited to, testing before the deliverables are accepted). If the Government determines that ICT deliverables provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of clause)

I.2 REQUIREMENTS FOR IMPLEMENTING SECTION 508 STANDARDS OR OTHER ACCESSIBILITY STANDARDS FOR OTHER FEDERAL CUSTOMERS

Unless otherwise specified at the task order level, the provisions of FAR Subpart 39.2 – Information and Communication Technology will apply to all task orders where the customer is a federal agency other than the Library of Congress and the customer is subject to the FAR. Customer agencies may have alternative or additional governing authorities and requirements for implementing accessibility requirements. If a customer agency requires additional or alternative accessibility requirements, those requirements will be identified at the task order level and the vendor shall be required to meet such requirements.

(End of Clause)

I.3 Department of Defense Orders

I.3.1. PURCHASES ON BEHALF OF DEPARTMENT OF DEFENSE CUSTOMERS

Where vendors undertake purchases on behalf of Department of Defense customers, the following DFARS clauses apply (and are hereby incorporated into this IDIQ contract and orders issued pursuant to the contract):

I.3.2. DEFENSE FEDERAL ACQUISITION REGULATION SUPPLEMENT CLAUSES (48 CFR CHAPTER 2)

NUMBER	DATE	TITLE
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252.203-7000	SEP 2011	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS
252.203-7002	DEC 2022	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS
252.203-7003	AUG 2019	AGENCY OFFICE OF THE INSPECTOR GENERAL
252.203-7005	SEP 2022	REPRESENTATIONS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS
252.204-7000	OCT 2016	DISCLOSURE OF INFORMATION
252.204-7002	APR 2020	PAYMENT FOR SUBLINE ITEMS NOT SEPARATELY PRICED
252.204-7003	APR 1992	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT
252.204-7015	JAN 2023	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT
252.205-7000	JUN 2023	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS
252.215-7007	JUN 2012	NOTICE OF INTENT TO RESOLICIT
252.215-7008	DEC 2022	ONLY ONE OFFER
252.225-7000	FEB 2024	BUY AMERICAN - BALANCE OF PAYMENTS PROGRAM CERTIFICATION - BASIC
252.225-7001	FEB 2024	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM
252.225-7020	NOV 2014	TRADE AGREEMENTS CERTIFICATE
252.225-7021	FEB 2024	TRADE AGREEMENTS - BASIC
252.225-7012	APR 2022	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES
252.204-7003	APR 1992	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT
252.204-7004	JAN 2023	ANTITERRORISM TRAINING FOR CONTRACTORS
252.225-7031	JUN 2005	SECONDARY ARAB BOYCOTT OF ISRAEL
252.225-7050	DEC 2022	DISCLOSURE OF OWNERSHIP OR CONTROL BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM
252.226-7001	JAN 2023	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC INTERESTS, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS
252.227-7015	JAN 2025	TECHNICAL DATA
252.227-7037	JAN 2025	VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA
252.232-7003	DEC 2018	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS
252.232-7006	JAN 2023	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS
252.232-7010	DEC 2006	LEVIES ON CONTRACT PAYMENTS

252.232-7011	MAY 2013	PAYMENT IN SUPPORT OF EMERGENCIES AND CONTINGENCY OPERATIONS
252.237-7010	JAN 2023	PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL
252.243-7002	DEC 2022	REQUESTS FOR EQUITABLE ADJUSTMENTS
252.244-7000	NOV 2023	SUBCONTRACTS FOR COMMERCIAL ITEMS
252.247-7023	OCT 2024	TRANSPORTATION OF SUPPLIES BY SEA - BASIC
252.204-7016	DEC 2019	COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES - REPRESENTATION
252.204-7017	MAY 2021	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES - REPRESENTATION
252.204-7018	JAN 2023	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES
252.204-7023	JUL 2021	REPORTING REQUIREMENTS FOR CONTRACTED SERVICES
252.209-7004	MAY 2019	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM
252.215-7013	JAN 2023	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS
52.216-7010	OCT 2025	POSTAWARD DEBRIEFINGS FOR TASK ORDERS AND DELIVERY ORDERS

1.3.3. APPLICABILITY OF 36 C.F.R. § 701.7 TO THIS CONTRACT AND ORDERS PLACED UNDER THIS CONTRACT

This contract, and each order placed under this contract, are subject to the provisions of 36 C.F.R. § 701.7, which is provided below. For purposes of this contract and any resulting orders under this contract, 36 C.F.R. § 701.7 shall be applicable to all FEDLINK customer agencies to the same extent as 36 C.F.R. § 701.7 is applicable to the Library of Congress.

36 C.F.R. § 701.7 – Certain Terms in License Agreements.

Definitions.

Computer software has the meaning provided in 48 CFR 2.101.

License agreement means any license agreement, subscription agreement, end user license agreement (EULA), terms of service (TOS), or similar legal instrument or agreement.

Purpose. The purpose of this part is to accommodate the Library of Congress' legal status as a Federal agency of the United States and assure that the Library of Congress, when entering into license agreements, follows applicable Federal laws and regulations, including those related to fiscal law constraints, governing law, venue, and legal representation; to preserve the Library's rights under U.S., foreign, and international copyright law; and to preserve the Library's ability to make use of computer software and other materials it licenses.

Applicability. (1) The clauses set forth in paragraph (d) of this section are deemed to be inserted into each license agreement to which the Library of Congress is a party with the same force and effect as if set forth therein, notwithstanding any provision thereof to the contrary. In addition, the clauses in paragraph (e) of this section are deemed to be inserted into each license agreement to which the Library of Congress is a party, other than license agreements for the license of computer software to the Library of Congress, with the same force and effect as if set forth therein, notwithstanding any provision thereof to the

contrary. If any term of a license agreement (at the time the license agreement is executed or as it may be amended in the future) conflicts with or imposes any additional obligations on the Library of Congress with respect to a matter addressed by any of the clauses that are deemed to have been inserted into the license agreement as described above, the following shall apply:

Such term is unenforceable against the Library of Congress unless otherwise expressly authorized by Federal law and specifically authorized under applicable Library of Congress regulations and procedures;

Neither the Library of Congress nor its employees shall be deemed to have agreed to such term by virtue of the term appearing in any license agreement;

Such term is stricken from the license agreement; and

The terms of the clauses of this section incorporated in the license agreement shall control.

The Library of Congress is not bound by a license agreement unless it is entered into on behalf of the Library of Congress by a person having the authority to contract referred to in § 701.4.

The Library of Congress is bound only by terms that are in writing and included in license agreements (including hard copy and electronic license agreements) entered into on behalf of the Library of Congress by a person having the authority to contract referred to in § 701.4.

If any provisions are invoked through an “I agree” click box or other comparable mechanism (e.g., “clickwrap” or “browse-wrap” agreements), such provisions do not bind the Library of Congress or any Library of Congress authorized end user to such provisions, unless agreed to on behalf of the Library of Congress by a person having the authority to contract referred to in § 701.4.

Provisions applicable to all license agreements. The following clauses are deemed to be inserted into each license agreement to which the Library of Congress is a party:

Unauthorized Obligations

The Library of Congress shall not be bound by any provision that may or will cause the Library of Congress or its employees to make or authorize an expenditure from, or create or authorize an obligation under, any appropriation or fund in excess of the amount available in the appropriation or fund, that would create an Anti-Deficiency Act (31 U.S.C. 1341) violation. Such provisions include, for example, automatic renewal of the agreement, penalty payments by the Library of Congress, indemnification by the Library of Congress, and payment by the Library of Congress of taxes or surcharges not specifically included in the price for the license.

Liability

The liability of the Library of Congress and its obligations resulting from any breach of this agreement, or any claim arising from this agreement, shall be determined exclusively under 28 U.S.C. 1346, 28 U.S.C. 1491, or other governing Federal authority.

Representation

The conduct of, and representation of the Library of Congress in, any litigation in which the Library of Congress is a party, or is interested, are reserved exclusively to the United States Department of Justice as provided for in 28 U.S.C. 516.

Governing Law

This agreement shall be governed for all purposes by and construed in accordance with the Federal laws of the United States of America.

Venue

Venue for any claim under this agreement shall lie exclusively in the Federal courts of the United States, as provided in 28 U.S.C. 1346 and 28 U.S.C. 1491. Any action commenced in a State court that is against or directed to the Library of Congress may be removed by the United States Government to Federal district court in accordance with 28 U.S.C. 1442.

Dispute Resolution

The Library of Congress does not agree to submit to any form of binding alternative dispute resolution, including, without limitation, arbitration.

Order of Precedence

Notwithstanding any provision of this agreement (including any addendum, schedule, appendix, exhibit, or other attachment to or order issued under this agreement), in the event of any conflict between the provisions of this agreement and the provisions of the clauses incorporated into this agreement pursuant to 36 CFR 701.7, the provisions of the clauses incorporated pursuant to 36 CFR 701.7 shall control.

Commercial Computer Software

As used in this clause, “commercial computer software” has the meaning provided in 48 CFR 2.101.

The provisions of the clause regarding the license of commercial computer software set forth in 48 CFR 52.227-19 are incorporated into this agreement with the same force and effect as if set forth herein, with all necessary changes deemed to have been made, such as replacing references to the Government with references to the Library of Congress.

Additional provisions applicable to license agreements other than for license of computer software. In addition to the clauses deemed to be incorporated into license agreements pursuant to paragraph (d) of this section, the following clauses are deemed to be inserted into each license agreement to which the Library of Congress is a party, other than for the license of computer software to the Library of Congress:

Unauthorized Uses

The Library of Congress shall not be liable for any unauthorized uses of materials licensed by the Library of Congress under this agreement by Library of Congress patrons or by unauthorized users of such materials, and any such unauthorized use shall not be deemed a material breach of this agreement.

Rights Under Copyright Law

The Library of Congress does not agree to any limitations on its rights (e.g., fair use, reproduction, interlibrary loan, and archiving) under the copyright laws of the United States (17 U.S.C. 101et seq.), and related intellectual property rights under foreign law, international law, treaties, conventions, and other international agreements.

LC52.212-4 (DEV) CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (FEB 2016)

FAR 52.212-4, Contract Terms and Conditions – Commercial Items. The clause is modified as follows:

(1) The reference in section (d) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(2) The references in section (g)(2) and (i)(2) to the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 C.F.R. part 1315 refer instead to the Prompt Payment clause at FAR 52.232-25 as modified by the Library.

(End of clause)

Section J - List of Attachments

Identifier	Title
1	SOW-Attachment A-Lot 1 Pricing Schedule_Amendment 0002.xlsx
2	SOW-Attachment B-Lot 2 Pricing Schedule.xlsx
3	Attachment C - SCA Wage Determination.pdf
4	Attachment D - Past Performance Questionnaire.docx

Section K - Representations, Certifications and Other Statements of Offerors or Respondents

Provision	Title	Fill-ins
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures (Dec 2023)	

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision--

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations.* The Offeror represents that--

(1) It ___will, ___will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It ___does, ___does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation (Oct 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) *Representations.*

(1) The Offeror represents that it ___does, ___does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ___does, ___does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-5 Certification Regarding Responsibility Matters (Aug 2020)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that--

(i) The Offeror and/or any of its Principals--

(A) Are ___are not ___presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ___have not ___, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ___are not ___presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ___, have not ___, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) *Examples.*

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ___has not ___, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) *Definitions.* As used in this provision--

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ___has ___does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services (May 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision--

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service--

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except--

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology--

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

- (1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran, as used in this definition*, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b) (1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that--

(i) It ___is, ___is not a small business concern; or

(ii) It ___is, ___is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ___is, ___is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ___is, ___is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ___is, ___is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture.....]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, that it ___ is, ___ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ___ is, ___ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(i) It ___ is, ___ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; or

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall provide representation of its WOSB status.

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(i) It ___ is, ___ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; or

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each EDWOSB concern participating in the joint venture shall provide representation of its EDWOSB status.

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ___ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It ___ is, ___ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ___ is, ___ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) *Representations required to implement provisions of Executive Order 11246--*

(1) *Previous contracts and compliance.* The offeror represents that--

(i) It ___ has, ___ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ___ has, ___ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that--

(i) It ___has developed and has on file, ___has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ___has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352).* (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American--Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____.

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American--Free Trade Agreements--Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free

Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end

product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) ___Are, ___are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ___Have, ___have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ___Are, ___are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ___Have, ___have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds \$3,500 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for *Listed End Products (Executive Order 13126)*. [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed end product	Listed countries of origin
_____	_____
_____	_____
_____	_____

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

___(i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

___(ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly--

(1) ___In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ___Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

___(1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ___does ___does not certify that--

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

___(2) Certain services as described in FAR 22.1003-4(d)(1). The offeror ___does ___does not certify that--

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies--

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

___ TIN: _____.

___ TIN has been applied for.

___ TIN is not required because:

___ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

___ Offeror is an agency or instrumentality of a foreign government;

___ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

___ Sole proprietorship;

___ Partnership;

___ Corporate entity (not tax-exempt);

___ Corporate entity (tax-exempt);

___ Government entity (Federal, State, or local);

___ Foreign government;

___ International organization per 26 CFR 1.6049-4;

___ Other _____.

(5) *Common parent.*

___ Offeror is not owned or controlled by a common parent;

___ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that--

(i) It ___ is, ___ is not an inverted domestic corporation; and

(ii) It ___ is, ___ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror--

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if--

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it ___has or ___does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code:

_____.

Immediate owner legal name:

_____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ___Yes or ___No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code:

_____.

Highest-level owner legal name:

_____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that--

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is ___is not ___a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ___is not ___ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror*. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ___is or ___is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code:

_____(or mark "Unknown")

Predecessor legal name:

(Do not use a "doing business as" name)

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) *Representation*. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) ___does, ___does not publicly disclose greenhouse gas emissions, *i.e.*, makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ___does, ___does not publicly disclose a quantitative greenhouse gas emissions reduction goal, *i.e.*, make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: _____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that--

(i) It ___does, ___does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ___does, ___does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

Section L - Instructions, Conditions and Notices to Offerors or Respondents

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[Insert one or more Internet addresses]

(End of provision)

Provision	Title	Fill-ins
52.216-27	Single or Multiple Awards (Oct 1995)	
52.216-29	Time-and-Materials/Labor-Hour Proposal Requirements-Other Than Commercial Acquisition With Adequate Price Competition (Nov 2021)	

52.216-1 Type of Contract (Apr 1984)

The Government contemplates award of a multiple-award Indefinite Delivery/Indefinite Quantity (IDIQ) contract contract resulting from this solicitation.

(End of provision)

LC52.233-2 Protests to the Library of Congress (Dec 2013)

Offerors may submit a protest directly to the Contracting Officer or to the Government Accountability Office. Protests filed with the contracting officer will be decided promptly, and may be appealed to the Library's Senior Procurement Executive for purposes of conducting an independent review of the contracting officer's decision.

(End of clause)

Section L Instructions to Offerors

L.1. SUBMISSION INSTRUCTIONS

Offerors may submit a proposal for one or both IDIQ Lots. An offeror who does not submit a Lot will be taken as not being able to provide services for that Lot.

All proposals shall be submitted as electronic files to Contracting Officers Catherine J. Campbell at catcampbell@loc.gov, Katie Bowen at katbowen@loc.gov, and fedlinkcontracts@loc.gov no later than the response date specified in the solicitation. The subject line must include the solicitation number, RFP # LCFDL26R0012.

Offerors must comply with the formatting, content, and submission instructions. If the proposal does not comply with the instructions, the offeror may be deemed non-responsive by the Contracting Officer and ineligible for award. Proprietary information shall be identified as such.

Facsimile or hand carried proposals will not be considered or accepted for this solicitation.

L.2. CLARIFICATION QUESTIONS

Questions related to this solicitation must be submitted via email to the point(s) of contact listed above in Section L.1 no later than 12:00pm Eastern time on Tuesday, January 20, 2026. The subject line shall state the RFP number: LCFDL26R0012. Answers to questions of a substantive nature will be provided to all offerors via an amendment to the solicitation. The Library reserves the right to not answer questions and will not guarantee responses to questions submitted after this date.

L.3. PROPOSAL FORMAT

Offerors are strongly encouraged to thoroughly review Section C – Statement of Work, the evaluation criteria, and the submission instructions when providing their written response to this solicitation.

Offerors must submit their written response in three separate files: Volume I – Entity Information (Adobe PDF or Word); Volume II – Technical Proposal (Adobe PDF); and Volume III – Business Proposal. Proposed pricing (Attachments A and B) must be in MS Excel- compatible spreadsheet format. All dollar amounts shall be limited to two decimal places with no rounding used.

Use letter-sized (8-1/2" X 11") pages, single-spaced, with one-inch (1") margins. One page equals one side of a sheet of paper. Any pages in excess of the page limitations imposed on the technical submission herein may not be considered.

Number the pages consecutively and use a 10 to 12-point font size in an easily readable font, such as Times New Roman, Calibri or Arial. Eleven (11) point font size and single spacing are acceptable for any tables, graphics, and illustrations; however, do not submit an abundance of information in chart format. The page limitations shown below do not include any "front matter" information such as a cover letter, table of contents, and definitions or acronyms. Any technical or pricing information submitted within the "front matter" will not be considered.

L.3.1. Organization and Arrangement

Proposals shall be organized in the following parts:

Part I – Entity Information (Unlimited Pages)

Include the following for Part I:

- Introductory narrative
- Contractor responsibility information (**completed FAR 52.209-5, "Certification Regarding Responsibility Matters (Aug 2020);" FAR 52.209-7, "Information Regarding Responsibility Matters (Oct 2018);" and paragraph (h) of provision FAR 52.212-3, "Offeror Representations and Certifications - Commercial Products and Commercial Services."**)
- System for Award Management (SAM.gov) Unique Entity Identification Number
- Signed SF-1449 form and other required fill-ins

- Subcontracting/Partner arrangement agreement, if applicable
- Exceptions to solicitation requirements, terms, and conditions

Part II – Technical Volume (Factors 1 & 2: 20-page combined limit per Lot; Factor 3: limit 2-pages per example given)

- (a) **Evaluation Factor 1 - Technical Approach:** IDIQ – Lot 1 and/or Lot 2
 (b) **Evaluation Factor 2 - Management Approach:** IDIQ – Lot 1 and/or Lot 2
 (c) **Evaluation Factor 3 - Government/Other Experience:** IDIQ – Lot 1 and/or Lot 2

Part III – Business Volume – Attachments A, B, and D

- (a) **Evaluation Factor 4 - Past Performance:** Including Questionnaires (Attachment D) submitted by references
 (b) **Evaluation Factor 5 - Price:** Excel spreadsheets for each Lot proposed: Lot 1 (Attachment A) and Lot 2 (Attachment B)

L.4. CONTENT OF PROPOSALS

L.4.1. PART II – TECHNICAL VOLUME

The Technical Volume shall not contain price or cost information.

Evaluation Factor 1: Technical Approach

Offerors shall submit a **Technical Approach** narrative that demonstrates a clear understanding of the requirements specified in Section C – Statement of Work. The offeror's technical approach should demonstrate that the offeror understands the technical scope and complexity of the work to be performed, and that the offeror has the technical capability and capacity to accomplish the work. For offerors submitting a Lot 1 – On-Site Library Support Services proposal, this narrative should address the offeror's understanding of the full scope of library support functions required under the resulting IDIQ contract, including management of library/information center staff, management of integrated library systems, collection services, data services, public services, and technical services (C.3.2). For offerors submitting a Lot 2 – Off-Site Technical Services proposal, this narrative should address the elements described in Sections C.4.2. Cataloging Services; C.4.3. Metadata Services; and C.4.4. Physical Processing Services.

Evaluation Factor 2: Management Approach

Offerors shall submit a **Management Approach** narrative that clearly and thoroughly describes how they will organize, manage, and control all functions and activities as described in Section C – Statement of Work. This proposal section should include:

(a) **Management Structure.** Describe the offeror's management structure for this contract. The proposal shall provide the offeror's approach to recruit, retain, and replace staff, provide reach-back capability to accommodate surge in work requirements, and plans for continuity of service and minimizing disruptions. The offeror must also provide a listing of anticipated subcontractors and/or teaming arrangements and describe any affiliation with the offeror. For these entities provide: name, address, and UEI number for all proposed, named subcontractors or other entities that will perform any portion of the contract work. Include an organization chart.

(b) **Communications.** The offeror must provide a communications plan, detailing how offeror will communicate with the COR (including the CORs for individual task orders) and Contracting Officer to ensure the Government receives the services required under this solicitation.

(c) **Contract/Task Order Management.** Describe the offeror's approach to managing the overall IDIQ contract, including their capability to effectively plan, coordinate, perform, and administer multiple concurrent task orders across a geographically dispersed customer base. Offeror shall describe their procedures for accurately tracking and reporting labor hours under Labor-Hour (LH) type task orders, including procedures for validating direct labor hours by individual employee and labor category and controls in place to prevent unauthorized or unapproved labor charges.

(d) **Quality Assurance.** The offeror shall explain the proposed methods, procedures, and tools they intend to use to assure the quality of their staff's performance (Lot 1) and/or their deliverables (Lot 2).

(e) **Key Personnel.** The offeror shall designate a Contract Manager and an alternate who will be considered Key Personnel under the resulting contract. The offeror shall demonstrate their ability to provide qualified personnel to lead this contract by providing résumés for the individuals it proposes to be Key Personnel. The résumés shall include information regarding current position, experience, relevant academic preparation, training, achievements, references, and the availability of personnel. Minimum qualifications are stated in section C.9.2.1.

Evaluation Factor 3: Government/Other Experience

Offerors shall provide at least two (2) examples of experience providing Library Support Services to Federal government or other customers comparable to the requirements as described in this solicitation within the past three (3) years. Contracts listed may include

those entered into with the Federal Government, agencies of state and local governments, and commercial customers among others. Offerors shall include the following information for each contract:

- (1) Customer Name and Address
- (2) Contract Number
- (3) Contract Award Date and Completion Date
- (4) Contract Type
- (5) Total Contract Period of Performance and Dollar Value
- (6) Contracting Office Points of Contact (name and telephone number)
- (7) Technical Office Points of Contact (name and telephone numbers)

For each example of Government/Other Experience, offerors shall describe:

- (1) The specific types of services provided and their relevance to requirements in this solicitation.
- (2) The offeror's experience and capabilities providing the services, including employees and resources available to enable it to fulfill requirements. The information provided must be clear as to whether the work was performed as the prime or subcontractor. Include date(s) of performance.
- (3) If applicable, describe offeror's overall management control of any subcontractor(s) for the contracts, and how this relationship provided quality service to the customer.
- (4) Provide a narrative explaining offeror's approach to overcoming challenges that may have been encountered while providing services required in the contracts; explain how offeror resolved any problems encountered during the performance of services under the contracts.

L.4.2. PART III – BUSINESS VOLUME

Evaluation Factor 4 – Past Performance

Offerors shall ask their references provided under Evaluation Factor 3, Government/Corporate Experience, to complete the past performance questionnaire (Attachment D) and submit it directly to Contracting Officers Catherine J. Campbell at catcampbell@loc.gov and Katie Bowen at katbowen@loc.gov. It is the Offeror's responsibility to ensure that Past Performance Questionnaires are completed and timely submitted by customer references, and that correct names, addresses and phone numbers are provided in the responses for each reference. An offeror will not be penalized in the evaluation with an unfavorable rating for the failure of its Government/Corporate Experience references to complete and submit the Past Performance Questionnaires. The Government may contact Offerors' customer references or use other references/information, such as CPARS, to verify past performance.

Evaluation Factor 5 – Price

Offerors shall provide prices for the all items for each year in the price tables in the individual worksheets contained in Attachments A and B.

(a) For Lot 1 – On-site Library Support Services: Attachment A.

The offeror shall provide fully burdened rates for all categories being offered for each year during the five-year period of performance. Discounts are strongly encouraged. Offerors must support their proposed prices by filling in the information required in each column of Attachment A. Any supplemental labor categories that are proposed beyond the required list should be justified with a brief example of when and why the supplemental labor category would support the offeror's technical proposal. Offerors may provide rates for higher levels corresponding to more advanced qualifications, for example, Librarian I, Librarian II, Librarian III.

(b) For Lot 2 – Off-site Technical Services: Attachment B.

The offeror shall provide unit pricing or price ranges for services offered under the category of off-site technical services for each year during the five-year period of performance. The offeror shall provide unit commercial pricing and FEDLINK pricing for the items in Attachment B. Recognizing that the list of services is not exhaustive, the offeror may add supplemental items to the worksheet, or provide its own price sheet, as long as it shows the commercial and FEDLINK unit pricing.

L.5. INCURRING COSTS

The Government is not responsible or liable in any manner for risks, costs, or expenses incurred by the offeror in the preparation of its response to this solicitation, including any travel expenses.

L.6. PERIOD FOR ACCEPTANCE OF OFFERS

The offeror agrees, if their offer is accepted within ninety (90) calendar days from the date specified in the solicitation for receipt of proposals, to furnish any or all items upon which prices are offered.

(End of Section L)

Section M - Evaluation Factors for Award

Section M Evaluation Factors for Award

The Contracting Officer will screen proposal packages to identify and eliminate any proposals that are so incomplete or non-conforming/non-responsive to the instructions or terms and conditions of the solicitation or other solicitation requirements, as to preclude a meaningful evaluation. The Contracting Officer reserves the right to eliminate any offer from further evaluation or consideration for award if that offeror's proposal package fails to comply or conform to the solicitation's minimum specifications, instructions or terms and conditions, or is missing information requested in this solicitation.

FEDLINK anticipates award of multiple IDIQ contracts resulting from this solicitation.

FEDLINK reserves the right to award based upon initial proposals but may enter discussions with one or more offerors if it is determined to be in the best interest of the Government. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

A "best value trade-off" analysis approach will be conducted through an integrated assessment among price and non-price factors. Non-price factors, when combined, are significantly more important than price; however, as the difference in technical merit between offerors becomes less significant, the relative importance of the proposed prices will increase.

The following evaluation factors will be evaluated by the Government, listed in descending order of importance:

VOLUME	FACTORS	TITLE
II Technical Volume	1	Technical Approach
	2	Management Approach
	3	Government/Other Experience
III Business Volume	4	Past Performance
	5	Price

Factor 1 – Technical Approach

The Government will evaluate the Technical Approach to determine that the Offeror has a thorough understanding of services to be provided, and that the technical approach provides logical, feasible, and effective methodologies. Higher scores may be given to Offerors whose Technical Approach demonstrates innovative solutions and show a clear strategy for managing technical risks and ensuring high quality work across multiple task orders.

Factor 2 – Management Approach

The Government will evaluate the extent to which the offeror's proposed management approach provides a high level of confidence that the offeror can hire, retain and manage qualified staff; ensure consistent high-quality services; and successfully manage multiple task orders and subcontractors to successfully meet the requirements of this solicitation and communicate effectively with government personnel. The Government will also evaluate the extent to which the offeror's Key Personnel possess adequate training and experience to perform work and provide deliverables according to the technical requirements described in Section C - Statement of Work of this solicitation. Higher scores may be given to offerors whose Management Approach demonstrates a thorough and proactive approach to managing Labor-Hour type task orders and extensive experience administering multiple task orders across geographically dispersed areas.

Factor 3 – Government/Other Experience

Proposals will be evaluated based on the relevance, recency, and quality of the submitted experience. Higher ratings may be given to Offerors that demonstrate a strong history of managing and delivering high-quality, comparable services with minimal performance risk, particularly in Federal environments or complex multi-site projects.

Factor 4 – Past Performance

The Government will evaluate the past performance questionnaires submitted in accordance with Section L of the solicitation to assess the level of risk of the offeror's ability to successfully perform the contract. The Government will also review records contained in

the Contractor Performance Assessment Reporting System (CPARS) to assess the likelihood that offeror can successfully perform the required work, and any other relevant sources of past performance information. Past performance will be evaluated independently to determine the degree of confidence the government has in the offeror's ability to perform successfully. The Government reserves the right not to award to any offeror whose past performance is determined to present an unacceptable level of risk.

(a) Relevance. Past performance on contracts that are more technically relevant to the customer's performance requirements, and similar in scope will receive greater consideration than performance on contracts that are less similar. Similarity will be assessed based on the volume and type of materials cataloged and deliverables provided.

(b) Successful Past Performance. The customer will evaluate past performance as reported on questionnaires received for the following:

1. Technical Performance
2. Project Approach and Contract Management Evaluation
3. Contract Compliance
 - Cost Control
 - Timeliness
 - Business Relations
4. Overall Evaluation

The Government may also obtain additional information on past performance from other sources such as Government past performance databases and Inspector General reports and Government Accountability Office reports. FEDLINK reserves the right to consider any source of past performance information, including prior performance on FEDLINK contracts and orders, and the Contractor Performance Assessment Reporting System (CPARS).

Past Performance will be rated using an adjectival rating scale based on risk (Low Risk, Moderate Risk, High Risk). If an offeror does not have relevant past performance information or no information is obtained by FEDLINK, it will be evaluated as Neutral.

Factor 5 – Price

Price Proposals will be evaluated pursuant to FAR 15.404-1.

The Price Proposal(s) will be evaluated for accuracy, completeness, and reasonableness. The Government will review all proposals to determine if pricing reflects a clear understanding of the requirements, and is consistent with the offeror's technical proposal.

1. Lot 1 – On-site Library Support Services: The Government will evaluate proposed direct labor rates for realism, reasonableness, and consistency with the offeror's technical and management approach. Proposed labor rates that are unrealistically low may be considered an indicator of increased performance risk. The Government will also assess whether labor categories and associated rates reflect adequate compensation to attract and retain qualified personnel.
2. Lot 2 – Off-site Technical Services: Proposed pricing will be evaluated for accuracy, completeness, and reasonableness.

The Government may also conduct a price realism analysis. An offeror will not be considered for award if its proposal is found to be priced unrealistically low, which indicates that the offeror fails to understand the requirements and as such presents a risk to the successful performance of the contract.

(End of Section M)